

Q.2c (15 marks): Discuss the nature of Law and Justice in simple societies citing suitable examples



2.c)

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Law as per Hobbes refers to use of force to deter punish those who deviate from established customs and to regulate the behaviour of individuals.

It is an element of the broader justice system that involves the process of dispute resolution and establishing societal peace.

Law in Simple Society

↳ As per Radcliffe Brown, simple societies don't have law, they just have social sanctions to react to desirable or undesirable situations.

↳ However as per Hobbes and Louis Huxford totality of these sanctions applied during breach of these established customs actually form primitive/customary law.

Characteristics of Law- Primitive law are

- ↳ developed gradually and organically
- ↳ based on ethics, societal values, practices and narratives
- ↳ does not differentiate between private and public wrong
- ↳ only criminal and no civil law
- ↳ no uniform code of punishment
- ↳ believe in concept of Supernatural and sin
- ↳ no full time enforcing agencies
- ↳ collective responsibility of kin

These laws are sometimes against human rights and are unfair however, they need

Justice in Simple Societies

It involves several procedures like

① Establishing evidences via

↳ oath - promise in the name of important objects

eg. Sanskrit - "Dharm Dharam"

- Oath of Bhayvad (fear) in today's times is also derived from there

② Ordeal - tough situation which needs miracle

by supernatural

eg. Males - Saveli - licking hot axe

→ Divination by supernatural eg. Tiv's shaman

→ Extortion eg. USA tribes can check wife to find out truth from them

② Punishment

→ Via village council

eg. Samrat Council asks to pay by "feast" if incest done

→ Fine or compensation

eg. Kamars of MP pay hefty fines for adultery

③ Dispute resolution

Violent

eg. War in NW of Nigeria

eg. Cattle raid or wife raid in Nagas

Non-violent

eg. Nuer's mediation by leopard skin chief

eg. Soft method - song duel by Luvu

Simple Societies thus ~~are~~ follow simple systems, without specific specialists. Justice there is enforced by kin and as nobody can neglect him, as their priority is social harmony → social order is better maintained in simple societies.